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CASE #	CASE NAME	HEARING NAME
CVSW2401766	MEZA VS FCA US, LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Plaintiff's Evidentiary Objection is overruled. Motion for Attorney's Fees granted in the reasonable amount of \$35,235.00. Costs awarded in the amount of \$12,379.30.

This is a lemon law action. On October 9, 2022, Plaintiff Luis Meza ("Plaintiff") purchased a new 2022 Ram 1500 (the "Vehicle") from DCH Chrysler Dodge Jeep of Temecula ("DCH") in Temecula, California. (Compl. ¶ 9.) Defendant FCA US LLC ("FCA") expressly warranted that the Vehicle would be free from defects in materials, nonconformities, or workmanship during the applicable warranty period and to the extent the Vehicle had defects, FCA would repair the defects. (*Id.* at ¶ 10.)

Beginning in 2023, Plaintiff presented the Vehicle to FCA's authorized repair facilities on multiple occasions for defects and nonconformities to warranty. (*Id.* at ¶¶ 17–21.) On December 5, 2023, Plaintiff contacted FCA and told FCA that his Vehicle had not been repaired after many visits, and that he requested FCA repurchase his Vehicle. (Wirtz Decl. ¶ 33, Ex. 8.) FCA told Plaintiff that he had to bring it back to the dealership for diagnosis before any repurchase evaluation could be completed. (*Id.*)

On February 15, 2024, Plaintiff filed the Complaint, alleging violations of the Song-Beverly Act against FCA. On April 5, 2024, FCA filed its Answer. The parties engaged in discovery, including written discovery, meet and confer correspondence regarding discovery disputes, and multiple motions to compel. The Court awarded sanctions on certain of Plaintiff's motions to compel.

On September 18, 2025, FCA served a CCP § 998 Offer to Compromise ("998 Offer"), offering to pay Plaintiff \$203,500.00 (inclusive of any loan payoff amount) plus reasonable costs, expenses and attorneys' fees pursuant to Civ. Code § 1794(d) as stipulated by the parties or, if the parties cannot agree, upon motion to the Court. The parties agreed that Plaintiff is the prevailing party for purposes of the motion, without waiving FCA's right to assert arguments in opposition to the motion. Plaintiff accepted the 998 Offer on September 29, 2025.

Plaintiff now moves for attorneys' fees and costs as the prevailing party under Civ. Code § 1794(d) following FCA's accepted 998 Offer, seeking attorney fees under the lodestar method in the amount of \$48,575.00 for 131.5 hours of work, a lodestar multiplier of 1.5 for risk and delay in the amount of \$24,287.50, for a total of **\$72,862.50** in attorney fees. Plaintiff also requests **\$12,379.30** in litigation costs and expenses claimed on Plaintiff's Memorandum of Costs, which FCA did not challenge by motion to strike or tax. Plaintiff contends that FCA refused to informally resolve the fee dispute, that Wirtz Law APC's rates have been repeatedly approved by courts in comparable Song-Beverly matters, and that all hours claimed were reasonably incurred.

FCA opposes the motion, arguing that Plaintiff's counsel's demand for an award of \$72,862.50 in legal fees for settling this routine and straightforward lemon law action is excessive. FCA does not contend that Plaintiff is not entitled to legal fees, but argues that only reasonably incurred attorneys' fees are recoverable. FCA contends the Court

should reduce the hourly rates to reflect prevailing market rates as \$500 per hour for senior attorneys, \$350 per hour for associates, \$275 for law clerks, and \$125 per hour for paralegals. FCA targets specific categories of billed time for reduction, including: (1) 0.9 hours billed on May 8, 2024, by Jessica Underwood for client communication as duplicative; (2) three 3.0-hour entries for motions to compel as excessive and duplicative of sanctions already awarded; (3) paralegal time related to motions to compel where sanctions were awarded; and (4) 4.2 hours of anticipated attorney time as improper. FCA requests the Court award no more than \$24,752.50 to Plaintiff's counsel in attorneys' fees.

In reply,¹ Plaintiff argues that FCA failed to meet its burden to provide any evidence to oppose the amount sought and that general arguments that fees are excessive do not suffice. Plaintiff contends that Riverside Superior Court approved the hourly rates sought as recently as March 2026. Plaintiff addresses each of FCA's objection categories, arguing that sanctions are punishment for failing to comply with the Discovery Act and not a downpayment on lodestar fees, and that the remaining anticipated time is reasonable and relates to attending the hearing, filing the notice of ruling, and filing the dismissal once fees are paid. Plaintiff requests an award of lodestar fees of \$48,575.00, plus a multiplier of \$24,287.50, totaling \$72,862.50, along with \$12,379.30 in uncontested costs and expenses.

Evidentiary Objection - Plaintiff filed one evidentiary objection to the Declaration of Alexis C. Santana submitted with FCA's opposition, specifically to paragraph 3 and Exhibit A, an excerpt from the 2023 Real Rate Report offered as evidence of prevailing rates for lawyers practicing "Consumer Goods" litigation. Plaintiff objects on the ground that the excerpt is irrelevant and more prejudicial than probative under Evid. Code §§ 350 and 352 because the 2023 Real Rate Report is out of date and is not limited to Riverside County or California, whereas the relevant community rate for the lodestar calculation is the rate prevailing where the services are rendered.

The objection is overruled. The Santana Declaration and its exhibit are received for the limited purpose of documenting FCA's rate comparison position. Whatever probative value the 2023 Real Rate Report carries has already been discounted by the Court, which has set the applicable hourly rates by reference to prevailing Riverside County community rates in comparable Song-Beverly matters, not by reference to the Real Rate Report figures on which FCA relied. The objection is therefore moot in its practical effect and does not warrant exclusion.

Attorneys' Fees - Civ. Code § 1794(d) provides that if a buyer prevails in an action under the Song-Beverly Act, the buyer shall be allowed to recover as part of the

¹ With his reply, Plaintiff submitted the Wirtz Reply Declaration, which includes updated billing entries converting previously anticipated time for reply preparation to actual time incurred, and supporting invoices for the claimed costs. (Wirtz Reply Decl. ¶ 4, Ex. 10.) New evidence in reply papers is generally not permitted and is allowed only in exceptional cases; however, the Court has discretion to accept it so long as the opposing party is given an opportunity to respond. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537–38.) Here, the supplemental billing entries and cost invoices were submitted in direct response to FCA's opposition, which challenged the anticipated fee motion time as speculative and argued that Plaintiff had not adequately documented the claimed costs. **Under the circumstances, the Court Exercises its discretion to consider the Wirtz Reply Declaration and afford FCA an opportunity to respond at the hearing.**

judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the Court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action. (Civ. Code § 1794(d).) The prevailing buyer must establish entitlement to fees and the reasonableness of the fees claimed. (*Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105, 1110.) Here, the parties have stipulated that Plaintiff is the prevailing party, and FCA does not contend Plaintiff is not entitled to fees. (Wirtz Decl. ¶ 32, Ex. 7.)

California courts use the lodestar method to calculate reasonable attorney fees under fee-shifting statutes. The lodestar is calculated by multiplying the number of hours reasonably expended by a reasonable hourly rate. (*PLCM Grp. Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The party seeking fees bears the burden of documenting the appropriate hours expended and hourly rates. (*Premier Med. Mgmt. Sys., Inc. v. Cal. Ins. Guarantee Ass'n* (2008) 163 Cal. App.4th 550, 564.) A verified fee bill is prima facie evidence that the services listed were necessarily incurred, and a declaration attesting to its accuracy is entitled to credence in the absence of a clear indication the records are erroneous. (*Horsford v. Bd. of Trustees of Cal. State Univ.* (2005) 132 Cal.App.4th 359, 396.)

Once the moving party meets its burden, the burden shifts to the opposing party to demonstrate that the claimed fees are excessive or unreasonable. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. (*Premier Med. Mgmt. Sys.*, *supra*, 163 Cal.App.4th at 564.) The Court has an independent duty to review attorney documentation of hours expended; padding in the form of inefficient or duplicative efforts is not subject to compensation. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.)

Hourly Rates - Plaintiff seeks the following hourly rates: \$600/hour for Senior Attorneys Amy Rotman and Jessica Underwood; \$450/hour for Associate Attorneys Safia Bootwala, Kyle Sample, and Laura Rose Schwartz; \$300/hour for Senior Managing Paralegal Rebecca Evans; and \$250/hour for Paralegal Dalia Zaki. (Wirtz Decl. ¶¶ 17–23.) Plaintiff submits a survey report reflecting hourly rates for consumer law attorneys in California, evidence of rates approved in other courts including Riverside Superior Court in March 2026, and the 2025 Real Rate Report. (*Id.* at ¶¶ 24–26, 38, Exs. 2–4, 9.)

FCA requests the Court reduce the hourly rates to \$500 for senior attorneys, \$350 for associates, \$275 for law clerks, and \$125 for paralegals, relying on the 2023 Real Rate Report and arguing the case was routine. FCA contends that Safia Bootwala was not admitted to the California Bar until November 12, 2025, and all her entries predate that admission, so she should be compensated as a law clerk at \$275/hour, not as an attorney at \$450/hour.

Although FCA's specific rate objections are largely generalized, a reasonable hourly rate is in any event the rate prevailing in the community for similar work. (*Garcia v. Mercedes-Benz USA, LLC* (2018) 21 Cal.App.5th 1259, 1261.) To promote consistency across similar Song-Beverly matters, the Court applies the reasonable Riverside County community rates it uses in comparable fee motions, whether or not the parties dispute

those rates: \$650 per hour for a managing partner, \$550 per hour for a partner, \$375 per hour for an associate, and \$150 per hour for a paralegal.

The Court sustains FCA's objection as to Safia Bootwala. FCA represents, and Plaintiff does not dispute, that Ms. Bootwala was not admitted to the California Bar until November 12, 2025, and her time entries in this matter predate her admission. (Wirtz Decl. ¶¶ 2, 21, Ex. 1; Def.'s Opp. 4:19–5:1.) Pre-admission legal work is properly compensated at a law clerk rate rather than the associate rate, because the timekeeper is not yet authorized to perform work reserved to admitted attorneys. Consistent with the law clerk rate FCA itself proposes (Def.'s Opp. 4:23–5:1), Ms. Bootwala's 14.4 hours are compensated at \$275 per hour.

Applying the community rate schedule, the Court approves the following hourly rates for the timekeepers on this matter:

Richard M. Wirtz ("RMW"), Managing Partner: \$0 (no charge)
Amy R. Rotman ("ARR"), Partner: \$550 (reduced from \$600)
Jessica R. Underwood ("JRU"), Partner: \$550 (reduced from \$600)
Kyle B. Sample ("KBS"), Associate: \$375 (reduced from \$450)
Laura Rose Schwartz ("LRS"), Associate: \$375 (reduced from \$450)
Safia Bootwala ("SHB"), Law Clerk: \$275 (reduced from \$450)
Rebecca Evans ("REE"), Senior Paralegal: \$150 (reduced from \$300)
Dalia Zaki ("DZ"), Paralegal: \$150 (reduced from \$250)

Reasonable Hours Expended - Plaintiff claims 131.5 hours of attorney and paralegal time, totaling \$48,575.00 at the claimed rates. (Wirtz Decl. ¶ 2, Ex. 1.) The billing records show work performed from case evaluation in December 2023 through anticipated post-hearing work in September and November 2026.

FCA objects to specific time entries totaling 29.2 hours as duplicative, excessive, or improper. The Court addresses each category of objection below.

0.9 hours (JRU, 5/8/24) - Client Communication - FCA argues this entry for client communication about settlement is duplicative because JRU billed 1.2 hours over the preceding three days for substantially the same settlement discussions. Plaintiff defends the 0.9-hour entry as reasonable time needed to answer an unsophisticated client's questions. Plaintiff states the anticipated time entries were updated in the Wirtz Reply Declaration. (Wirtz Reply Decl. ¶ 4, Ex. 10.)

The Court overrules FCA's objection. Effective client communication is a necessary and compensable component of legal representation. The fact that prior communications occurred does not render subsequent communications duplicative. This time is reasonable.

20.6 hours – Motions to Compel (Sanctions Already Awarded) - FCA contends that time spent on the following motions to compel should be excluded because the Court already awarded sanctions:

- 3.0 hours (JRU, 11/25/24) — Motion to Compel FCA's PMQ deposition;

- 3.0 hours (JRU, 1/21/25) — Motion to Compel Further Responses to RFPs;
- 3.0 hours (JRU, 4/8/25) — Motion to Compel Compliance with Subpoena to DCH Temecula;
- 4.3 hours (SHB, 3/17/25–3/25/25) — Motion to Compel Further Responses to RFPs (opposition review, reply drafting, and hearing attendance);
7.3 hours (KBS, 5/20/25–8/11/25) — Motion to Compel Hemet CDJR Dealership Personnel Depositions (declaration and exhibits, opposition review and reply, and hearing attendance) (Def.'s Opp. 6:10–8:3.)

Plaintiff argues that sanctions are punishment for Discovery Act violations, not a downpayment on lodestar fees, and that the full lodestar should be awarded under Civ. Code § 1794(d). Alternatively, Plaintiff requests the Court award the portion of fees incurred that were not compensated by sanctions.

The Court partially sustains FCA's objection. A trial court has discretion to reduce or disallow lodestar fees for a discovery motion where the moving party has already been awarded monetary sanctions in connection with that motion, in order to avoid double recovery for the same work. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 1000 [affirming disallowance of \$4,275 in lodestar fees where sanctions of \$3,850 had been awarded on the same motion].) Here, the Court awarded sanctions on three of the motions to compel encompassed within FCA's objection: (1) Motion to Compel FCA's PMQ deposition (\$860.00); (2) Motion to Compel Further Responses to RFPs (\$1,200.00); and (3) Motion to Compel Hemet dealership depositions (\$1,400.00). No sanctions were awarded in connection with the Motion to Compel Compliance with Subpoena to DCH Temecula, because Plaintiff withdrew that motion once DCH Temecula agreed to produce the relevant personnel for deposition. FCA's objection therefore fails as to the 3.0 hours billed on the DCH Temecula motion, and the Court declines to reduce those hours on the double recovery ground.

As to the three motions on which sanctions were awarded, Plaintiff has already received compensation for attorney and paralegal time on those motions through the sanctions orders. However, sanctions awards are typically calculated using a simplified method and may not fully compensate all reasonable time. The Court will reduce, but not eliminate, the time claimed on those three motions, by 50 percent. Applying the reduction across all timekeepers whose work on the sanctioned motions is at issue, the Court reduces (1) JRU's 6.0 hours on the PMQ and RFP motions by 3.0 hours; (2) SHB's 4.3 hours on the RFP motion by 2.15 hours; and (3) KBS's 7.3 hours on the Hemet dealership motion by 3.65 hours. This partial reduction accounts for the compensation Plaintiff already received through sanctions while recognizing that sanctions awards rarely provide full lodestar compensation.

3.5 hours – Paralegal Time (Sanctions Already Awarded) - FCA objects to 3.5 hours of paralegal time by DZ on motions to compel for which sanctions were awarded. Plaintiff's reply does not separately address the paralegal time challenge, incorporating it into the broader argument that sanctions are not a downpayment on the lodestar.

The Court partially sustains FCA's objection. For the reasons stated in the preceding subsection, the same double recovery framework that governs the attorney motion to compel time applies to the paralegal motion time on the sanctioned motions. (*Doppes*,

supra, 174 Cal.App.4th at 1000.) The Court accordingly reduces DZ's 3.5 hours of paralegal time on the sanctioned motions by 1.75 hours.

4.2 hours – Anticipated Time - FCA argues that 4.2 hours of anticipated time for work not yet performed (reply preparation, hearing attendance, post-ruling filings) should be stricken as improper. Plaintiff states the anticipated time entries were updated in the Wirtz Reply Declaration to reflect actual time incurred for reply preparation, hearing attendance, and post-ruling work.

The Court overrules FCA's objection. The Wirtz Reply Declaration reflects that the previously anticipated reply preparation time has now been incurred and is documented in the updated invoice, and only Ms. Rotman's hearing attendance and Ms. Evans's post-ruling Notice of Ruling and dismissal filings remain anticipated. (Wirtz Reply Decl. ¶ 4, Ex. 10.) An attorney fee award should ordinarily include compensation for all hours reasonably spent, including those relating solely to the fee, and this properly encompasses reply preparation, hearing attendance, and the ministerial post-ruling filings required to close out the case under the accepted 998 Offer. (*Ketchum*, *supra*, 24 Cal.4th at 1141; *Serrano v. Unruh* (1982) 32 Cal.3d 621, 639.) The 4.2 hours are reasonable and compensable.

In sum, the Court reduces the claimed hours as follows:

- Motion to compel time (JRU, PMQ and RFP motions): Reduce by 3.0 hours (from 6.0 hours claimed on those two motions)
- Motion to compel time (SHB, RFP motion): Reduce by 2.15 hours (from 4.3 hours claimed)
- Motion to compel time (KBS, Hemet motion): Reduce by 3.65 hours (from 7.3 hours claimed)
- Paralegal motion time (DZ, sanctioned motions): Reduce by 1.75 hours (from 3.5 hours claimed)
- All other time, including the 3.0 hours JRU billed on the DCH Temecula motion: Approved as claimed

Total reduction: **10.55 hours**.

Lodestar Calculation -

The following table sets forth the claimed hours, claimed rates, approved hours, approved rates, and lodestar for each timekeeper:

Timekeeper	Role	Claimed Hours	Claimed Rate	Approved Hours	Approved Rate	Lodestar
Rotman	Partner	9.6	\$600	9.6	\$550	\$5,280.00
Underwood	Partner	31.6	\$600	28.6	\$550	\$15,730.00
Bootwala	Law Clerk	14.4	\$450	12.25	\$275	\$3,368.75
Sample	Associate	19.0	\$450	15.35	\$375	\$5,756.25
Schwartz	Associate	2.3	\$450	2.3	\$375	\$862.50

Evans	Senior Paralegal	5.8	\$300	5.8	\$150	\$870.00
Zaki	Paralegal	24.2	\$250	22.45	\$150	\$3,367.50
Total		106.9²		96.35		\$35,235.00

Based on the above, the approved lodestar is **\$35,235.00** (96.35 hours).

Multiplier - Plaintiff seeks a 1.5 times multiplier (\$24,287.50) based on the contingent nature of the representation and delay in payment. FCA opposes any multiplier, arguing this was not a novel or difficult case and that the contingent risk is minimal in Song-Beverly Act cases given the statute's mandatory fee-shifting provision.

The Court declines to apply a multiplier. The lodestar method is designed to produce a reasonable fee award in the typical case, and additional enhancement is appropriate only where the lodestar figure does not adequately account for factors not already reflected in the lodestar calculation. (*Ketchum, supra*, 24 Cal.4th at 1138–39.) This case does not warrant enhancement. It was a routine Song-Beverly Act matter that settled on a CCP § 998 offer without a dispositive motion, trial, or novel legal issue. The contingent nature of the representation and any delay in payment are already fully reflected in the market rate lodestar the Court has approved for contingency based Song-Beverly work. (*Garcia, supra*, 21 Cal.App.5th at 1261–62 [contingent nature of Song-Beverly work does not alone support a multiplier because the fee-shifting statute makes recovery mandatory for a prevailing buyer].) Nothing in the record reflects extraordinary skill, exceptional results against heavy odds, or preclusion of other employment beyond what the lodestar itself compensates. The request for a 1.5 multiplier is **DENIED**.

Litigation Costs and Expenses - Plaintiff requests \$12,379.30 in litigation costs and expenses claimed on Plaintiff's Memorandum of Costs served on March 25, 2026. (Wirtz Decl. ¶ 39.) FCA's opposition acknowledges the \$12,379.30 amount sought, and lodges a single specific objection—that only one PMQ deposition was taken but two charges appear on the Memorandum of Costs. (Def.'s Opp. 2:7–8 [*“Defendant does challenge the claimed litigation costs and expenses since there was only one PMQ Deposition taken and there are two charges.”*].) FCA's conclusion recites a proposed alternative figure of \$4,678.20 for costs, offered without itemization, without identification, and without evidentiary support. FCA did not file a motion to strike or tax costs.

Under CCP § 1032(b), a prevailing party is entitled as a matter of right to recover costs. (CCP § 1032(b).) A prevailing party's verified memorandum of costs is prima facie evidence of the propriety of the items and amounts claimed, and where costs appear proper on their face, the burden shifts to the objecting party to show them unnecessary or unreasonable. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) The exclusive vehicle for objecting to items claimed in a memorandum of costs is a timely motion to strike or tax costs filed under CRC Rule 3.1700(b). A party's failure to file such a motion

² **NOTE:** The 106.9 total claimed hours reflected in the “Claimed Hours” column is lower than the 131.5 hours referenced in Plaintiff's motion because the table includes only hours actually charged to the file. Hours reflected on the billing records as no-charge entries (including Mr. Wirtz's time, which was billed at \$0.00, and other write-offs and no-charge time appearing on the invoice) are not included in the claimed hours total used to calculate the lodestar.

within the time provided waives its objections to the claimed costs. (*Douglas v. Willis* (1994) 27 Cal.App.4th 287, 289–90 [“The failure to file a motion to tax costs constitutes a waiver of the right to object.”] [internal quotation marks omitted].)

FCA did not file a motion to strike or tax costs within the 15-day period prescribed by CRC Rule 3.1700(b)(1). Neither the single sentence of objection in FCA’s opposition regarding the PMQ deposition entries nor the unexplained lower figure recited in FCA’s conclusion is a substitute for the statutorily prescribed vehicle for challenging costs. (CRC Rule 3.1700(b)(1); *Douglas, supra*, 27 Cal.App.4th at 289–90.) FCA’s objections to Plaintiff’s claimed costs are therefore waived.

Even were the Court to reach the merits of FCA’s PMQ deposition objection, the objection is not supported by the record. The Memorandum of Costs identifies the two challenged entries as a \$575.00 charge attributable to FCA’s PMQ deposition and a separate \$2,433.50 charge attributable to the deposition of Michael McDowell. FCA has offered no evidence, invoice comparison, or argument demonstrating that these are duplicate charges for a single event rather than distinct costs reasonably associated with the same PMQ deposition. On this record, FCA has not carried its burden to show the two entries are duplicative or unreasonable. (*Nelson, supra*, 72 Cal.App.4th at 131.)

Moreover, Civ. Code § 1794(d) permits a prevailing buyer to recover reasonable costs and expenses beyond the categories listed in CCP § 1033.5, so long as the items were reasonably incurred in connection with the litigation. (*Warren v. Kia Motors Am., Inc.* (2018) 30 Cal.App.5th 24, 42–43.) Plaintiff’s Memorandum of Costs claims filing and motion fees, deposition costs, service of process, court reporter fees, and other litigation expenses, all of which appear reasonable and necessarily incurred on the face of the verified memorandum. (Wirtz Decl. ¶ 39.)

Accordingly, the Court **GRANTS** Plaintiff’s request for litigation costs and expenses in the requested amount of **\$12,379.30**.